



POLICE DEPARTMENT

April 7, 2026

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Emmanuel Bellegarde :

Tax Registry No. 948652 :

43 Precinct :

Case No.

C-032964

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Rebecca Hausner, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Michael Martinez, Esq.
Martinez & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Emmanuel Bellegarde, on or about September 4, 2023, at approximately 2230 hours, while assigned to the 43 Precinct and on duty, in the vicinity of 1040 East New York Avenue, Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer Bellegarde spoke discourteously to **Complainant** by stating in sum and substance that, **Complainant** had daddy issues, was a dickhead and that the only person who is lame is **Complainant**'s mother for giving birth to him, without police necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION AND
VALUES OF THE NYPD

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 12, 2026. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The Civilian Complaint Review Board ("CCRB") did not call any witnesses but introduced body-worn camera ("BWC") footage of the incident and the hearsay statement of Complainant.¹ Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Guilty and recommend that he forfeit five (5) vacation days.

ANALYSIS

On September 4, 2023, at approximately 2230 hours, Respondent had completed a special detail at the West Indian Day Parade and was awaiting transportation back to the 43 Precinct. While waiting in front of a residential building located at 1040 East New York Avenue,

¹ Complainant's identity is known to the Tribunal, however since he did not testify at the hearing, his name was intentionally omitted.

Complainant entered the building to use the bathroom but was denied access. As a result, Complainant became agitated with building staff. Several officers, including Respondent, intervened to escort Complainant out of the building after he was told to leave by building management and refused to do so.

Two BWC video recordings of the interaction between Respondent and Complainant were admitted into evidence (CCRB Ex. 1 and 2). CCRB's Exhibit 1 (Police Officer Upshur's BWC) depicts Complainant being handcuffed and carried out of the building by uniformed officers after refusing to leave. Complainant is then placed on the sidewalk and surrounded by several officers, including Respondent, as they await an ambulance to transport him to a hospital. Complainant can be heard being verbally combative and using profanities toward the officers who are standing around him. The officers seem to be ignoring Complainant's tirade, except for one officer, who Complainant addresses by name, and they engage in a brief verbal exchange. (CCRB Ex. 1 at 06:50) At the 07:40 mark, Respondent begins to verbally interact with Complainant. Complainant, who is still handcuffed and seated on the ground, then tells Respondent to "shut the fuck up" and calls him a "dickhead" (*Id.* at 09:01). Respondent replies, "Ok dickhead, is that the only vocabulary you know?" (*Id.* at 09:16)

A heated verbal encounter ensues between Respondent and Complainant. At one point, Complainant calls Respondent "a fucking asshole" and Respondent retorts, "like your mama right?" (*Id.* at 10:04) Respondent then continues by stating, "You have daddy issues, I understand." (*Id.* at 10:10) Complainant replies, "I don't have no daddy issues, lame ass motherfucker." Respondent counters, "The only person who is lame is your mama for giving birth to you." (*Id.* at 10:17) The verbal exchange between Respondent and Complainant continues for about forty more seconds with Complainant continuing to use offensive and

derogatory language, until a female lieutenant approaches Respondent and pulls him aside. (CCRB Ex. 1 at 10:56) When Respondent returns, he no longer engages with Complainant.

Complainant did not appear to testify, nor did he respond to requests from the CCRB to testify at trial. A copy of Complainant's September 14, 2023 recorded interview and the accompanying transcript, were admitted into evidence (CCRB Ex. 3A and 3B). In his statement, Complainant provided his version of the events that transpired on September 4, 2023. He explained how he felt aggrieved by building management for not allowing him to use the bathroom when they allowed the police officers to use it. Complainant further detailed how the officers forcibly expelled him from the building and held him against his will, in handcuffs, while seated on a public sidewalk. He also affirmed that he was transported by EMS to the hospital "without [his] consent." (CCRB Ex. 3B at 20) Complainant did not, however, mention anything about his interaction with Respondent.

Respondent testified that on the date in question, he was working the "J'ouvert parade" detail in Brooklyn even though he was assigned to the 43 Precinct. At the time of the incident, Respondent recalled he had been working about 22 hours and was waiting for a van to transport him and his colleagues back to his command. While he and his partner were in the van, Respondent observed his sergeant struggling with an individual inside of a residential building, so he decided to assist. (Tr. 27-29)

Upon entering the residential building, Respondent observed Complainant being placed in handcuffs and going "limp," so Respondent and other officers had to pick Complainant up and carry him outside. They then placed Complainant on the ground outside while they waited for EMS to arrive. Respondent described Complainant's behavior as "aggressive, very belligerent, rude, disrespectful, [and] demeaning." (Tr. 30) Respondent testified that throughout the time that

he was standing beside Complainant, Complainant was being very rude and using vulgar and racially charged language toward him and the other officers.

Respondent admitted that when Complainant called him a “dickhead,” he asked Complainant, “Dickhead? Is that the only vocabulary you know, dickhead?” However, he claimed he only used the word “dickhead” as a part of a question he was asking Complainant in response to Complainant’s comment toward him. Respondent also acknowledged that he told Complainant that he had “daddy issues,” but claimed he did so because he believed Complainant was not raised properly and without a father to teach him respect. Respondent stated that he was hoping that making that statement would somehow shame Complainant into being quiet. (Tr. 32-33)

Lastly, Respondent acquiesced that he told Complainant that the only person who is “lame is his mother for giving birth” to him. When Respondent was asked to provide his reasoning for making such a statement, he testified that Complainant called him a “lame motherfucker” and that was his response. Respondent added that he was exhausted from being on his feet for 22 hours, thirsty and he was “just over it.” Respondent affirmed that he was not intentionally trying to be discourteous to Complainant or to insult him, he “just wanted to know why is he talking to me this way, why is he so angry.” (Tr. 34)

On cross-examination, Respondent acknowledged that at the time of this incident, Complainant was exhibiting signs that he was having a behavioral health crisis. Respondent also agreed that during his verbal encounter with Complainant, Complainant was not resisting and remained handcuffed on the ground the entire time. Respondent recalled that during his interaction with Complainant, his supervisor, Lieutenant Castro, pulled him aside to speak with

him. Although Respondent could not remember exactly what they spoke about, he understood that Lieutenant Castro instructed him to stop speaking with Complainant. (Tr. 37, 42-43)

Specification 1 alleges that Respondent made three separate discourteous comments to Complainant over the course of their heated verbal exchange. Since there is no dispute that Respondent made the comments in question, the issue is whether, under the circumstances, those statements were discourteous.

Having listened carefully to Respondent's testimony, in conjunction with the video footage, I am unpersuaded by Respondent's testimony that his use of the word "dickhead" was not meant to insult Complainant, but to ask him a question. Respondent would have this Tribunal believe that he was only attempting to mimic Complainant's coarse verbiage. However, the timing, tone and manner in which Respondent used the word "dickhead," strongly suggests that he was using Complainant's own words to demean and insult him.

Similarly, this Tribunal finds that the comments made by Respondent during the portion of his interaction with Complainant captured by CCRB's Exhibit 1 from 10:10-10:17 also constitute sanctionable misconduct. The exchange between Respondent and Complainant is as follows. Respondent states, "You have daddy issues, I understand." Complainant replies, "I don't have no daddy issues, lame ass motherfucker." Respondent responds, "The only person who is lame is your mama for giving birth to you."

Although Respondent testified that he did not intend to insult Complainant when he made these comments, in this context, these remarks are objectively discourteous and advance no legitimate police purpose. It is clear to this Tribunal that Respondent made these statements out of anger and frustration with Complainant's behavior and in response to the offensive insults Complainant directed at him. Notwithstanding Complainant's comportment, Respondent has a

responsibility to act with decorum in his interaction with members of the public and he failed to do so. On a public street, Respondent used inappropriate language in addressing Complainant, who may have been suffering from a behavioral health crisis. Even though there was no indication from this record that Complainant was offended by Respondent's comments, under these circumstances, the way Respondent addressed Complainant was disparaging and unbecoming for a member of service.

Respondent, who at the time of the incident was a thirteen-year Member of Service, has voluntarily assumed a higher standard of conduct. Such language is unprofessional in the context of taking this type of law enforcement action. This Tribunal is mindful that there are certain situations where profane remarks made during a stressful or chaotic situation would not constitute misconduct. This, however, was not one of those cases, and I therefore find Respondent Guilty of the sole specification for which he is charged.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 6, 2010 and has no formal disciplinary history, has been found Guilty of discourtesy. The presumptive penalty for discourtesy is five penalty days; the mitigated penalty is training; and the aggravated penalty is ten penalty days. The CCRB asks that Respondent forfeit ten (10) vacation days. In support of

that recommendation, counsel for the CCRB argued that there were various aggravating factors warranting an increased penalty, including that Complainant may have been in the midst of a behavioral health crisis, Respondent's use of "abusive" language and the "escalation" of the interaction by Respondent. I disagree with CCRB's assessment of the aggravating factors.

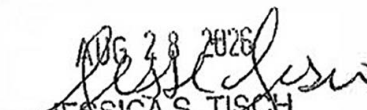
Members of the public should reasonably expect to be treated with courtesy, professionalism and respect when interacting with members of the Department. On the date in question, Respondent fell short in his mission of maintaining the public's confidence and respect when he interacted with Complainant in the manner that he did. Respondent's remarks were unprofessional, offensive and served no legitimate law enforcement objective. While Respondent's actions need to be appropriately addressed, to penalize him ten vacation days for this misconduct would be excessive.

It is important to underscore the need for Respondent to be more responsible in his interactions with the public, particularly in his choice of words even when interacting with volatile individuals. Respondent has an obligation to communicate with a greater degree of sensitivity and respect. Taking into account the totality of the facts and circumstances in this matter, I recommend that Respondent forfeit five (5) vacation days.

Respectfully submitted,


Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED


JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER EMMANUEL BELLEGARDE
TAX REGISTRY NO. 948652
DISCIPLINARY CASE NO. C-032964

Respondent was appointed to the Department on July 6, 2010. On his three most recent annual performance evaluations, he was rated “Exceeds Expectations” for 2023, 2024, and 2025.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials